LETTER OF UNDERSTANDING

This Letter of Understanding **("LOU")** is made on **Date 10-06-2025** (the **"Effective Date"**) by and between;

Swiggy Limited (formerly known as Bundl Technologies Private Limited), a company registered under the Companies Act, 1956, having its registered office at 3rd Floor, (Internally designated as at No. 55 Sy No 8 To 14, I & J Block, Ground Floor, Embassy Tech Village, Outer Ring Road, Devarbisanahalli, Varthur, Bengaluru – 560103 **("Swiggy") AND Swadika Gharelu Delights** a company/ partnership firm/ proprietary firm, having its corporate office at **Noida,Uttar Pradesh ("Restaurant Participant/ Merchant").**

Swiggy and the Restaurant Participant/ Merchant are hereinafter jointly referred to as the **"Parties"** and each, individually, a **"Party"** , as the context may so require.

NOW THEREFORE, THE PARTIES HEREBY AGREE AND CONTRACT AS FOLLOWS:

Capitalized terms used but not defined herein shall have the meaning assigned to them under the Merchant Terms of Use available at https://partner.swiggy.com/sellertnc **("Merchant Terms").**

1. Merchants understands that Swiggy is engaged in the business of inter alia operating an online platform under the name and style "Swiggy", through its **Platform,** which enables transactions between Merchants and Buyers, dealing in prepared food and beverages. The Platform is utilized by **Buyer(s)** to choose and place **Order(s)** from a variety of prepared food products listed and offered for sale by **Merchants** on the Platform, pursuant to which Swiggy facilitates delivery of such **Order(s)** through the independent pick-up and delivery partner engaged on principal to principal basis in select serviceable geographical area of the cities in India. The Merchant wishes to avail the Services enabled by Swiggy on a non-exclusive and contractual basis subject to the terms and conditions set out in the Merchant Terms, which includes, inter alia, warranties provided, obligations, intellectual property rights, confidentiality, responsibilities and grounds for termination.

2. The Merchant represents that **(i)** it is engaged in the business of food retail under the brand name and style "**Swadika Gharelu Delights**" serving food products and beverages through its multiple outlets owned and managed by the Merchant only and not the franchisees, the list enclosed in **Annexure - A; (ii)** it has full power and capacity to enter into and perform its obligations under this LOU;**(iii)**has taken all necessary licenses applicable to its business and is fully compliant with the provisions of the Food Safety and Standards Act, 2006 and rules and regulations prescribed thereunder **("FSSA"),** as amended from time to time; **(iv)**it shall not provide for sale on the platform, or for delivery to any executive pursuant to sales facilitated on the Platform, any food items that may be unsafe, or misbranded or substandard or which contain extraneous matter or for which a license is required under FSSA, except in accordance with the conditions of the license; and **(v)**all the information and contents provided by it, as required, to Swiggy are true, correct and accurate.

3. The Merchant understands and agrees that Swiggy shall collect, for and on behalf of the Merchant, the payments received from the Buyers and remit the same to the bank account of the Merchant in accordance with the **Payment Terms** after deductions of Service Fee, Collection Fee and Other Charges as mentioned under the **Schedule of Charges** and **GST** & other taxes applicable thereon at the prevailing rates.

4. The Merchant understands that Swiggy shall send consolidated reports of Orders placed and other details for the **Settlement Period** and invoice/s to the Merchant by electronic mail to **ravirashisingh16@gmail.com**.

5. The Merchant confirms and undertakes that it has read, understood and agrees to be bound by the terms set out in the Merchant Terms that are incorporated by reference herein and are deemed to be part of this LOU.

6. The effective date ("Effective Date") of this LOU shall be the date on which the Merchant signs this LOU [whether digitally or otherwise] and relay the same to Swiggy. This LOU shall thereon have full force of a contract and shall bind both Merchant and Swiggy fully upon on-boarding of Merchant on Platform for a period of 12 months.

7. The Merchant further confirms and undertakes that the supporting documents provided by the Merchant along with this LOU are true and correct to their knowledge and understanding.

[Digitally] Signed by the Merchant:

ANNEXURE A

1. The Merchant shall pay to Swiggy Rs. **1769** (Inclusive of GST) towards one-time onboarding and listing facilitation services (Onboarding and Listing Facilitation Service Fee) availed by the Merchant at the time of on-boarding. Swiggy shall collect INR **943** (Inclusive of GST) upfront during the onboarding process and shall deduct the remaining INR **826** (Inclusive of GST) from the weekly settlement amount.

2. It is clarified that, as a limited offer the commissions so charged, will be refunded by Swiggy to the Merchant, on the completion of (i) 30 days (from the date of onboarding of a new merchant) or (ii) completion of 100 orders on the platform or (iii) INR 10,000 worth of commission charged by Swiggy, whichever is earlier.

Upon refund of the commissions by Swiggy as a limited time offer, Swiggy shall revert to its norm of charging the commission at the stated under clause 1 hereinabove on a per order basis.

3. The benefits mentioned in clause 2 above shall be applicable only to Merchants that have never been onboarded on the Swiggy platform. The above mentioned benefits shall not be applicable to existing merchants on the Swiggy platform or existing outlets of new brands or new brands of existing merchants.

I. DETAILS OF SERVICE FEE

1. The Merchant shall pay 24% of the Gross value of each non Swiggy One order towards Service Fee to Swiggy for a period of 12 months from the Effective Date which shall be deducted by Swiggy from weekly pay-outs due to the Merchants. Post the expiry of aforesaid period of 12 months, the Parties shall mutually agree on the Service Fee payable by the Merchant.

2. In addition to the above, Merchant shall also pay Swiggy an additional fee for each order placed by a Swiggy One member with the Merchant via the Platform for the following cities.

Bangalore	Kochi	Allahabad	Jaipur	Kolkata	Mumbai	Faridabad
Gurgaon	Coimbatore	Bhubaneswar	Chandigarh	Vizag	Pune	Gorakhpur
Hyderabad	Lucknow	Central Goa	Kanpur	Noida	Indore	Vijayawada
Delhi	Nagpur	Varanasi	Ahmedabad	North Goa	Guwahati	Noida 1
South Goa	Chennai					

The fee details are:

% of Swiggy One Orders (No of weekly Swiggy One Orders / Total No of Orders in a week *100)	Rate per Swiggy One order (INR)
0 – 20	2
21-40	3
41-60	4
Above 60	5

3.For the cities not forming part of the above table, Merchant shall pay a flat Service Fee of INR 3 for each order placed by a Swiggy One member to the Merchant via the Platform.

II. Other Applicable fixed fee in addition to the Service Fee above shall be as follows:

Merchant shall pay collection fee to Swiggy for facilitating payments from the customers on the Swiggy Platform in a seamless manner. The collection fee rates are as follows:

a) Collection Fee: 2%

Notification no. 17/2021 Central Tax (rate) was issued on 18 November 2021. This communication is intended to

inform you about the implications of the above mentioned GST notification applicable from 01 January 2022.

We wish to bring to your attention the latest Notification No. 17/2021 dated November 18, 2021 issued by Central Board of Indirect Tax and Customs (CBIC) through which the e-commerce operator (ECO) is now made liable to pay GST on "restaurant services" provided through the e-commerce platform. Note that this change is not applicable for restaurant services provided from a premise with declared tariff of Rs. 7,500/- or above per day. At present, this provision shall be effective from January 01, 2022.

Swiggy Limited (formerly known as Bundl Technologies Private Limited) (hereinafter referred to as "Swiggy" or "the Company") qualifies as an "e-

commerce operator" under Section 2(45) of Central Goods and Services Tax Act, 2017. Therefore, based on the above notification read with Section 9(5) of CGST Act, 2017, Swiggy will be responsible to pay GST on restaurant services provided through its website / app from January 01, 2022.

In this regard to comply with the above change, Swiggy Private Limited (hereinafter referred to as "Swiggy" or "the company") is classified as an ECO as per the applicable provisions of the GST law and is required to

bifurcate the eateries operating on its platform into two broad categories as below:

1. Restaurant:

As per Notification No.11/2017 - Central Tax Rate F.No.354/117/2017-TRU dated 28th June, 2017, restaurant services" is defined as "Restaurant service means supply, by way of or as part of any service, of goods, being food or any other article for human consumption or any drink, provided by a restaurant, eating joint including mess, canteen, whether for consumption on or away from the premises where such food or any other article for human consumption or drink is supplied".

A restaurant is a place which is in the business of preparing and serving food in the premises or as takeaway. An illustration under this category is provided below:

a) Restaurants located in a premise where declared tariff is not exceeding Rs. 7,500 per day andproviding restaurant services;

b) Food and beverage sold as a part of restaurant services and which qualifies as restaurant services;

c) Cloud kitchens providing restaurant services; etc

d) Stand alone restaurants which are not ice cream parlors or bakeries.

As per Notification No. 17/2021 dated November 18, 2021, Swiggy shall be responsible

For restaurants with no GSTIN, Swiggy shall be responsible for charging, collecting and paying GST @ 5% on the total order value.

Swiggy will also disclose such payment made in the GST returns as prescribed by CBIC.

2. Non-restaurant:

Shops / suppliers supplying other edible goods which do not qualify as “restaurant services” shall fall under this category.

Some of the example under this category is:

a) Standalone ice cream parlor who is not supplying “restaurant services”;

b) Standalone bakery who is not supplying “restaurant services”;

c) Sweet shops who is not supplying “restaurant services”;

d) Standalone chocolate shop who is not supplying “restaurant services”

e) Restaurants in hotels where the declared tariff of any accommodation unit is more than INR 7500/-

Note : the above list is not exhaustive and is merely illustrative for the purpose of understanding the definition of non-restaurant basis interpretation of press releases and various notifications issued by the government of India in relation to GST.

Such suppliers will continue to charge and pay applicable GST as per their current practice. These suppliers will have to mandatorily get themselves registered under GST in line with Section 24 of the CGST Act, 2017. Swiggy shall only be responsible to deduct and pay tax collected at source (TCS) under section 52 of the CGST Act 2017 at the rate of 1%.

Note that there is no change in the process of collection and payment of GST for such suppliers falling under this category.

In addition to the above two categories, given that there are eateries which provide both restaurant and non-restaurant supplies on the platform from the same RID, we have come up with a separate category as below.

3. Hybrid:

In case where a supplier is involved in providing “restaurant services” and supplying other goods that does not qualify as “restaurant services”, such supplier will be categorised under ‘hybrid model’.

Such supplier will have to bifurcate the “restaurant services” and other goods supplied through ECO. GST on “restaurant services” provided through Swiggy shall be paid by Swiggy and applicable GST on goods supplied through Swiggy shall be continued to be paid by the supplier.

Note that these suppliers will have to mandatorily get themselves registered under GST in line with Section 24 of the CGST Act, 2017 as no turnover threshold shall be applicable for supply of goods through e-commerce operators.

Further, Swiggy shall also be responsible to deduct and pay tax collected at source (TCS) under section 52 of the CGST Act 2017 at the rate of 1% on the value of other goods supplied through Swiggy’s platform.

Accordingly, we request you to categorize yourself into any one of the above categories via the below declaration. We also

request you to immediately communicate to us in case there is any change in the particulars given in the declaration at any time.

Wherever appropriate, we shall suggest the appropriate classification as per our understanding of the law. However it is solely your responsibility to classify yourself correctly.

Please note that this will form a part of the addendum to your MOU with Swiggy effective immediately.

We request you to consider this communication of utmost importance since it would also enable us to make the necessary changes in our ERP system.

Thanking you in advance for your co-operation.

Best regards,

DECLARATION FOR THE PURPOSES OF DETERMINING GST COLLECTION

The following declaration is given with true understanding of the categorisation and the full understanding of the aforementioned notification as issued under the GST law:

I/ We **Swadika Gharelu Delights** (Legal Name of the entity/Restaurant name), having our place of business at **Noida,Uttar Pradesh** and having the FSSAI No./ Acknowledge No. **22725105001188** hereby acknowledge the understanding of the Notification No. 17/2021 Central Tax (rate) dated 18 November 2021 read with Section 9(5) of CGST Act, 2017 and applicable CGST Rules, 2017.

Accordingly, we declare that we classify our business as: **Restaurant**

•Restaurant

•Non- Restaurant

•Both (referred as "Hybrid")

I/We confirm that we have classified our business correctly above.

I/We shall indemnify Swiggy Limited (hereinafter referred to as "Swiggy", "ECO" or "the company"), its affiliates, its directors and its employees from any demand of tax, interest or penalties arising on the company in case the declaration is found to be fallacious. In addition, we undertake to declare as below and indemnify Swiggy accordingly:

Declaration applicable in case you have selected "restaurant" above

1. I/ We understand and acknowledge that Swiggy shall collect and deposit GST at 5% to the extent of "restaurant services" provided by us on Swiggy's website/ application ('Swiggy's platform'). I/ We undertake that I/ we have carried out a determination of items that are supplied by us and undertake that all of these are to be categorized as "restaurant services".

2. I/ We understand that Swiggy is merely responsible to collect and deposit the GST with the relevant GST authorities on "restaurant services" based on the information and classification that I/ We provide to Swiggy. Swiggy is not responsible to determine whether a particular transaction qualifies as "restaurant service" or not as Swiggy is not privy to any internal activities carried out by us.

3. I/ We undertake to notify Swiggy immediately if the classification of our business changes in the future.

4. I/ We hereby undertake and confirm that I/ We shall indemnify Swiggy, its Affiliates, subsidiaries, directors, officers, employees, agents and service providers from any notices, liabilities, penalties, claims or demands, (including all costs, expenses, interests, and attorney's fees on account thereof that may be made) in connection with any tax collected at

source under section 52 of the CGST Act 2017 which may arise in case of any incorrect determination of items falling under “restaurant services” as made by us hereinabove.

5. All liabilities arising from any incorrect classification of items by us including any interest, penalty or any other amount demanded by the appropriate authorities shall be payable solely by us and shall remain our sole responsibility.

6. I/ We undertake to cooperate with Swiggy in case of any enquiry by the GST authorities on supplies made by us including furnishing any information required by the authorities, including copies of licenses, permits, approvals to establish that we qualify as “restaurant services”.

Declaration applicable in case you have selected “non-restaurant” above

1. I/ We understand and acknowledge that we shall be solely liable to pay GST on the supplies for “non-restaurant services” provided by us on Swiggy’s website/ application (‘Swiggy’s platform’). I/ We undertake that we have carried out a determination of items that are supplied by us and undertake that all these fall under “non-restaurant services”.

2. I/ We understand that Swiggy shall not be responsible to deposit the GST on any supplies made by us as these qualify as “non - restaurant services”. Swiggy is not responsible to determine whether a particular transaction qualifies as “non-restaurant service” or not as Swiggy is not privy to any internal activities carried out by us.

3. I/ We undertake to notify Swiggy immediately if the classification of our business changes in the future.

4. I/ We hereby undertake and confirm that I/ We shall indemnify Swiggy, its Affiliates, subsidiaries, directors, officers, employees, agents and service providers from any notices, liabilities, penalties, claims or demands, (including all costs, expenses, interests, and attorney's fees on account thereof that may be made) in connection with any incorrect determination of items falling under “non – restaurant services” as made by us hereinabove.

5. In case the GST authorities demand tax on us (for example asking us to reverse any input tax credit on account of any incorrect classification as determined by us), the liability arising therefrom including any interest, penalty or any other amount demanded by the authorities shall be payable solely by us and shall remain our sole responsibility.

6. 6 I/ We undertake to cooperate with Swiggy in case of any enquiry by the GST authorities on supplies made by us including furnishing any information required by the authorities, including copies of licenses, permits, approvals to establish that we qualify as “non-restaurant services”.

Declaration applicable in case you have selected “hybrid” above

1. I/ We understand and acknowledge that Swiggy shall be responsible for collecting and depositing GST at the rate 5% of the services which fall under the category of “restaurant services” and are provided by us on Swiggy’s website / application (‘Swiggy’s platform’) and we shall be liable to pay GST on the supplies on goods and services which fall under the

category of “non-restaurant services” provided by us on Swiggy’s platform. I/ We undertake that we have carried out a determination of items that are supplied by us and undertake what items fall under “restaurant services” and what items fall under “non-restaurant services”.

2. I/ We understand that Swiggy is merely responsible to collect and deposit the GST on “restaurant services” with the relevant GST authorities based on the information and classification that I/ we provide to them. Swiggy is not responsible to determine whether a particular transaction qualifies as “restaurant service” or not as Swiggy is not privy to any internal activities carried out by us.

3. I/ We undertake to notify Swiggy immediately if the classification of our business changes in the future.

4. I/ We hereby undertake and confirm that I/ We shall indemnify Swiggy, its Affiliates, subsidiaries, directors, officers, employees, agents and service providers from any notices, liabilities, penalties, claims or demands, (including all costs, expenses, interests, and attorney's fees on account thereof that may be made) in connection with any tax collected at source under section 52 of the CGST Act 2017 which may arise in case of any incorrect determination of items falling under “restaurant services” and “non-restaurant services” as made by us hereinabove.

5. All liabilities arising from any incorrect classification of items by us including any interest, penalty or any other amount demanded by the appropriate authorities shall be payable solely by us and shall remain our sole responsibility.

6. I/ We undertake to cooperate with Swiggy in case of any enquiry by the GST authorities on supplies made by us including furnishing any information required by the authorities, including copies of licenses, permits, approvals to establish that certain items in our services offering qualify as “restaurant services” and “non-restaurant services”.

For,

Authorised Signatory : **Poonam devi**

Date: **10-06-2025**

Note: In case you would like to update the item level GST percentages on the GST menu you may do the same via POS systems, Swiggy web portal and through the partner support team (as applicable).

Classification: Confidential

Assignment for Fund Transfer

Date of signing MOU: **10-06-2025**

To,

Area Sales Manager

Swiggy Private Limited. India.

From,

Restaurant Name: **Swadika Gharelu Delights**

Owner/ Partner / Manager Name: **Poonam devi**

Designation: Owner

Dear Sir/Madam,

We do hereby request to you kindly transfer all the future payments / due / Net payable amount due to us from sale of our

products through your application / platform in the account number **33826648857** Having IFSC code **SBIN0016173** in the name of beneficiary **Mrs. POONAM DEVI**

We are hereby attaching a copy of the self-attested Identity and address proof herewith.

Please do the needful at your end.

Thanking you.

Yours faithfully,

Mr./Ms. : **Poonam devi**

Designation: Owner

Name of Restaurant: **Swadika Gharelu Delights**

To

Bundl Technologies Private Limited ('Swiggy') No.55,
Sy.no. 8-14, I & J Block, Ground Floor Embassy Tech
Village, Outer Ring Road, Devarabisanahalli,
Bangalore – 560103

Subject: Confirmation with respect to GST registration

We, Swadika Gharelu Delights having our registered office/principal place of business at Makanpur Colony, Sector 62A, Noida, Uttar Pradesh, India 201309 hereby declare that we are not required to obtain registration under GST

in accordance with Section 22 of the CGST Act, 2017 as we are below the threshold limit for registration as prescribed under the GST law in our State.

We acknowledge our understanding under the GST law that Swiggy is required to collect tax at source on supplies made by us of food through Swiggy in case we qualify as registered person under GST.

We hereby undertake to immediately notify Swiggy if we obtain a registration under GST under any circumstances.

We also undertake to hold Swiggy unaccountable for any loss where this Declaration is found fallacious.

For, Poonam devi